

Consultation

The Department of Agriculture, Fisheries and Forestry (DAFF) has engaged with the organics sector on how to improve Australia's domestic organic regulatory framework. This included consideration of potential regulatory and non-regulatory options for reform, with a view to better understanding the sector, supporting industry growth, and improving consumer confidence.

Through this process there was an opportunity for everyone to have their say. This has allowed the government to consider a range of views, measure the full scale of regulatory impacts, and gain a thorough understanding of the sector.

Industry engagement found there is strong support from parts of the sector for mandatory regulation. However, others are less supportive, and have concerns about the costs of regulation and the potential red tape. There are also different views on the preferred regulatory approach.

For more information on the public submissions from the Have Your Say consultation that closed in February 2022, please contact domesticfoodregulation@aff.gov.au.

Outcome

In March 2023, the government decided not to progress a Domestic Organic Regulatory Framework. The government's decision not to proceed with regulation is based on public consultations, research and analyses undertaken by DAFF from December 2020 to March 2022 to test regulatory and non-regulatory options.

Although there could be a range of potential benefits arising from a domestic organic regulatory framework, these are outweighed by the associated costs. Two separate cost benefit analysis (CBA) reports found that introducing a mandatory Commonwealth regulatory scheme through new legislation would not provide a net benefit over a 10-year period.

While the government will not be progressing a Domestic Organic Regulatory Framework, it will continue to take other measures to support the growth of the organics industry. This includes making ongoing improvements to [the National Standard for Organic and Bio-dynamic Produce \(the National Standard\)](#) and pursuing international trade through equivalency and trade negotiations.

Reports

Several reports examining a potential domestic organic regulatory standard are available:

Download

[Cost benefit analysis for the implementation of a mandatory domestic organic standard - Deloitte March 2021 \(PDF 513 KB\)](#) [Cost benefit analysis of a new regulatory approach for domestic organics - PwC March 2022 \(PDF 939 KB\)](#)

If you have difficulty accessing these reports, please contact DomesticFoodRegulation@aff.gov.au.

Questions and answers

There is no legal definition or mandatory standard for organic products sold domestically in Australia. However, there is a voluntary domestic standard (AS6000) for growers and manufacturers wishing to label products as 'organic' and 'biodynamic' for sale within Australia.

Organic businesses can choose to be certified by an organic certification body to underpin truth in labelling requirements and promote consumer confidence.

Australian Consumer Law (ACL) provides general protections against misleading, false and deceptive conduct, which can address misrepresentations about labels on goods supplied to consumers. Under the ACL, consumers can make complaints to the Australian Competition and Consumer Commission.

Products for export that make an organic claim must be certified by an Australian Government approved certifying body against the National Standard for Organic and Bio-dynamic Produce.

The absence of a Domestic Organic Regulatory Framework does not prevent international trade in organic goods. Australia already exports organic produce to 71 countries.

The National Standard for Organic and Bio-dynamic Produce is Australia's technical export standard. It is owned by the department and provides the basis for equivalence (government to government) arrangements with trading partners.

For information on the organic export regulatory framework see [Exporting organic and bio-dynamic goods from Australia](#).

The Organics Industry Advisory Group (OIAG) delivered its final report to the former Minister for Agriculture in June 2021.

Consistent with its Terms of Reference, the OIAG has been concluded.

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/food/organic-biodynamic/organic-industry-advisory-group>